

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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SHEILA MARTIN,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER ADRIAN KLUSEK, Shield No. 7981,
POLICE OFFICER JOHN M. WILKINSON,
LIEUTENANT GRIGORIY BARDASH, DETECTIVE
ANDREW J. BABAJKO, Shield No. 3780, DETECTIVE
JEFFREY T. AUST, DETECTIVE ROBERT F.
MURNANE, POLICE OFFICER ROBERT J. LYNCH,
DETECTIVE ROBERT J. WOODHOUSE, DETECTIVE
MILLER, SERGEANT ANTHONY W. ALFANO, and
POLICE OFFICERS JOHN DOES #s 1- 10 (names and
numbers of whom are unknown at present),

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Richmond
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 12, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER ADRIAN KLUSEK, Shield No. 7981, 120th Pct., 78 Richmond Terrace, Staten Island, NY 10301
POLICE OFFICER JOHN M. WILKINSON, 120th Pct., 78 Richmond Terrace, Staten Island, NY 10301
LIEUTENANT GRIGORIY BARDASH, 120th Pct., 78 Richmond Terrace, Staten Island, NY 10301
DETECTIVE ANDREW J. BABAJKO, Shield No. 3789, 120th Pct. Detective Squad, 78 Richmond Terrace, Staten Island, NY 10301
DETECTIVE JEFFREY T. AUST, 120th Precinct, 78 Richmond Terrace, Staten Island, NY 10301
DETECTIVE ROBERT F. MURNANE, Staten Island Robbery Squad
POLICE OFFICER ROBERT J. LYNCH, Patrol Borough Staten Island
DETECTIVE ROBERT J. WOODHOUSE, Gang Unit Staten Island
DETECTIVE MILLER, Narcotics Borough Staten Island
SERGEANT ANTHONY W. ALFANO, 120th Precinct, 78 Richmond Terrace, Staten Island, NY 10301

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X

SHEILA MARTIN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER ADRIAN KLUSEK, Shield No. 7981,
POLICE OFFICER JOHN M. WILKINSON,
LIEUTENANT GRIGORIY BARDASH, DETECTIVE
ANDREW J. BABAJKO, Shield No. 3780, DETECTIVE
JEFFREY T. AUST, DETECTIVE ROBERT F.
MURNANE, POLICE OFFICER ROBERT J. LYNCH,
DETECTIVE ROBERT J. WOODHOUSE, DETECTIVE
MILLER, SERGEANT ANTHONY W. ALFANO, and
POLICE OFFICERS JOHN DOES #s 1- 10 (names and
numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff SHEILA MARTIN, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 24, 2017 at approximately 10:00 pm defendants unlawfully entered and searched plaintiff's home located at 18 Caroline Street, Staten Island, New York, and damaged and/or destroyed plaintiff's property during the search. Defendants damaged or destroyed significantly more than \$3,000 worth of plaintiff's property. Defendants unlawfully searched plaintiff, falsely arrested/imprisoned plaintiff, and transported her to the 120th Precinct whereat she was unlawfully detained for two days until she was arraigned in Richmond County Criminal Court on June 26, 2017 at approximately 7:25 pm and charged with serious felony crimes she did not commit and for which the defendants lacked probable cause to accuse her of committing. Plaintiff began menstruating while she was detained at the 120th Precinct and she asked the defendants for female products for her menstruation, but the defendants refused to provide them to her, and she bled through her pants. Ms. Martin was extremely uncomfortable and was crying from discomfort, embarrassment, and emotional

distress. Defendants maliciously prosecuted plaintiff and denied her the right to due process/right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause and based upon fabricated allegations made defendants against plaintiff. Due to the severity of the charges brought against plaintiff, at arraignment bail was set at \$15,000. Plaintiff was unable to immediately post bail and she was remanded to the Rose M. Singer Center on Riker's Island whereat she was detained for an additional 4 days before she was able to post bail and was released from custody. Plaintiff could not afford to post the entire bail using her own money and in order to be released from Riker's Island she paid a bail bondsman approximately \$2900 to post bail for her. Additionally, plaintiff paid approximately \$3,500 to retain a criminal defense attorney to represent her in the underlying criminal case. Plaintiff was fired from her job at Hilton Hotels because of the arrest and pending criminal prosecution and lost approximately \$45,885.18 in income while she was unemployed. Plaintiff was required to make 2 additional appearances in Richmond County Criminal Court to address the criminal charges pending against her and endure a 7-month criminal prosecution against her before all criminal charges were dismissed and sealed in their entirety on January 17, 2018. Plaintiff could no longer live in her home after she was released from Riker's Island had to move out of her home immediately after she was released from Riker's Island and she incurred costs greater than \$10,000 moving to a new residence. The false arrest and malicious prosecution caused plaintiff to experience severe psychological/emotional trauma that required medical treatment to address her emotional and psychological trauma. Plaintiff was diagnosed with insomnia and severe anxiety. Plaintiff gained approximately 50 pounds due to the increased stress levels and anxiety she experienced throughout the pendency of the criminal prosecution. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully entered plaintiff's home, unlawfully searched, falsely arrested/ imprisoned, maliciously prosecuted, and denied plaintiff the right to due process/right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff SHIELA MARTIN is a resident of the state of New Jersey.
3. Defendant POLICE OFFICER ADRIAN KLUSEK, Shield No. 7981, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER ADRIAN KLUSEK, Shield No. 7981, is and was at all times relevant herein, assigned to the 120th Precinct.
5. Defendant POLICE OFFICER ADRIAN KLUSEK, Shield No. 7981, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER JOHN M. WILKINSON is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER JOHN M. WILKINSON is and was at all times relevant herein, assigned to the 120th Precinct.

8. Defendant POLICE OFFICER JOHN M. WILKINSON is being sued in his individual and official capacity.

9. Defendant LIEUTENANT GRIGORIY BARDASH, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant LIEUTENANT GRIGORIY BARDASH, is and was at all times relevant herein, assigned to the 120th Precinct.

11. Defendant LIEUTENANT GRIGORIY BARDASH, is being sued in his individual and official capacity.

12. Defendant DETECTIVE ANDREW J. BABAJKO, Shield No. 3789, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE ANDREW J. BABAJKO, Shield No. 3789, is and was at all times relevant herein, assigned to the 120th Precinct Detective Squad.

14. Defendant DETECTIVE ANDREW J. BABAJKO, Shield No. 3789, is being sued in his individual and official capacity.

15. Defendant DETECTIVE JEFFREY T. AUST, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE JEFFREY T. AUST, is and was at all times relevant herein, assigned to the 120th Precinct.

17. Defendant DETECTIVE JEFFREY T. AUST, is being sued in his individual and official capacity.

18. Defendant DETECTIVE ROBERT F. MURNANE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant DETECTIVE ROBERT F. MURNANE, is and was at all times relevant herein, assigned to the Staten Island Robbery Squad.

20. Defendant DETECTIVE ROBERT F. MURNANE, is being sued in his individual and official capacity.

21. Defendant POLICE OFFICER ROBERT J. LYNCH, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant POLICE OFFICER ROBERT J. LYNCH, is and was at all times relevant herein, assigned to the Patrol Borough Staten Island.

23. Defendant POLICE OFFICER ROBERT J. LYNCH, is being sued in his individual and official capacity.

24. Defendant DETECTIVE ROBERT J. WOODHOUSE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant DETECTIVE ROBERT J. WOODHOUSE, is and was at all times relevant herein, assigned to the Staten Island Gang Squad.

26. Defendant DETECTIVE ROBERT J. WOODHOUSE, is being sued in his individual and official capacity.

27. Defendant DETECTIVE MILLER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. Defendant DETECTIVE MILLER, is and was at all times relevant herein, assigned to the Narcotics Borough Staten Island.

29. Defendant DETECTIVE MILLER, is being sued in his individual and official capacity.

30. Defendant SERGEANT ANTHONY W. ALFANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

31. Defendant SERGEANT ANTHONY W. ALFANO, is and was at all times relevant herein, assigned to the 120th Precinct.

32. Defendant SERGEANT ANTHONY W. ALFANO, is being sued in his individual and official capacity

33. Defendants Police Officers John Does #s 1-10 are and were at all times relevant times herein officers, employees, and agents of the New York City Police Department.

34. Defendants Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

35. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

36. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

37. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

38. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

39. By way of background, on June 24, 2017 plaintiff lived with her four adult children and her granddaughter in a private home located at 18 Caroline St., Staten Island, NY.

40. Beginning in October 2016, plaintiff's teenage son, referred to herein as "EF," was being harassed by several individuals around his age that lived up the street from plaintiff and who were affiliated with the Bloods gang.

41. On several occasions the people that lived up the street threatened EF with a gun and told EF that they would harm members of his family.

42. EF filed several complaints with the 120th precinct of the New York City Police Department to report the individuals that made threats against him and his family.

43. Prior to June 24, 2017, defendants were familiar with the people who threatened EF and defendants had identified some of the individuals as Bloods gang members.

44. Upon information and belief, defendants did not take any action against the individuals that threatened EF after he filed complaints against them with 120th Precinct.

45. EF felt helpless when defendants failed to do anything to protect EF from being attacked by the gang members, and he felt that nobody was taking any steps to protect him from being harmed or killed by the Blood gang members that lived up the street.

46. Upon information and belief, EF was terrified for his life because he did not know what to do to prevent the gang members from injuring or killing him.

47. On the evening of June 24, 2017, the gang members that lived up the block from plaintiff threatened EF again.

48. Plaintiff was inside of her home located at 18 Caroline Street, Staten Island when EF ran into the house terrified because, according to him, the Bloods gang members that lived up the street threatened him again.

49. Plaintiff was scared for her son and feared that he would be attacked, injured, and or killed by the gang members if something was not done to stop the gang members from continuing to threaten her son.

50. Plaintiff walked up the block to see whether she could locate and speak with any of the parents of the gang members that threatened her son.

51. At no time relevant herein did plaintiff threaten anybody with a weapon, or physically assault anyone.

52. Plaintiff walked up the street and had a constructive conversation with a resident that lived on that end of their block about how to resolve the dispute between her son and the Bloods gang members without anybody being harmed.

53. In fact, the conversation was so constructive that plaintiff thought they were going to reach a resolution to the problem involving her son and the gang members.

54. However, the conversation between plaintiff and the other resident that lived on the block was abruptly interrupted by several of the gang members that threatened her son.

55. The gang members were visibly drunk and verbally threatened plaintiff and her son.

56. Plaintiff became frightened that the dispute might escalate, and the threats might turn into violent actions.

57. Plaintiff's primary goal was to prevent anyone from getting injured or killed.

58. Plaintiff decided that the best way to protect herself and her son at that moment was to simply leave the scene and return to her home.

59. Plaintiff grabbed EF who was present in the vicinity of where plaintiff was standing and walked home with him before any of the individuals who were threatening them had an opportunity to engage in a physical altercation.

60. Plaintiff's decision to retreat to her home prevented a physical altercation from occurring.

61. Upon information and believe, someone called 911 to request police assistance because the gang members were drunk and threatening to injure plaintiff and EF.

62. Defendants arrived at the scene after plaintiff and her son had already retreated into their home, and plaintiff did not know that the police were called.

63. When defendants arrived at the location witnesses described what occurred to the police.

64. Someone allegedly told the police that EF flashed a gun and threatened individuals with it.

65. Plaintiff did not witness EF flash a gun or threaten anyone at the scene of the dispute.

66. The witnesses advised defendants that plaintiff was with EF at the scene of the dispute.

67. At no time relevant herein did any of the witnesses tell defendants that plaintiff threatened anyone at the scene of the incident or that plaintiff physically injured or attacked anyone at the scene of the incident.

68. Defendants fabricated allegations against plaintiff that she threatened some of the individuals involved in the dispute with a weapon.

69. Defendants did not possess any objective facts or evidence to support the false allegations made by defendants against plaintiff that she threatened individuals with a weapon.

70. After plaintiff returned to her home with EF she went upstairs to her bedroom and began to get ready for bed.

71. Plaintiff's son and three daughters remained in the living room on the ground floor of their home and watched television.

72. Thereafter, on June 24, 2017 at approximately 10:00 pm plaintiff was lawfully present inside of her bedroom at her home located at 18 Caroline Street, Staten

Island, New York when defendants unlawfully and forcefully entered plaintiff's home without a validly obtained warrant or any legal justification to enter without a warrant.

73. Defendants unlawfully searched plaintiff's entire home and destroyed/damaged most of the property plaintiff had in her home while they searched the home, resulting in more than \$3,000 in damage to plaintiff's property..

74. Defendants searched plaintiff's home for two days, from June 24, 2017 until June 26, 2017 and would not permit plaintiff's family into the home during that period of time.

75. Consequently, plaintiff's children had nowhere to sleep for two nights and were forced to stay outside on the porch of their home for two nights until the police officers concluded the unlawful search.

76. Defendants unlawfully searched plaintiff, without probable cause or legal justification, and did not recover any illegal weapons, drugs or contraband pursuant to their search.

77. Defendants unlawfully handcuffed and falsely arrested/ imprisoned plaintiff before they even began searching her home

78. At no time relevant herein did the defendants have probable cause to believe plaintiff committed a crime or violated the law.

79. Defendants fabricated allegations against plaintiff and falsely accused plaintiff of possessing a handgun and ammunition.

80. Defendants transported plaintiff to the 120th Precinct against her will, whereat she was unlawfully searched, fingerprinted, photographed and detained in a holding cell for many hours.

81. On the morning of June 25, 2017 plaintiff was transported to the Staten Island Criminal Courthouse whereat she was unlawfully detained in holding cells all day without being brought before a judge.

82. Upon information and belief, the reason plaintiff was not arraigned on June 25, 2017 was because the police officers had not yet obtained a search warrant to search her home, but they intended to charge her with possession of a weapon and ammunition that they intended to allege they recovered from plaintiff's home.

83. At the end of the day on June 25, 2017 plaintiff was transported back from the Staten Island Criminal Courthouse to the 120th Precinct and detained in a holding cell.

84. Plaintiff began menstruating while she was detained at the 120th Precinct and she asked defendants for female products for her menstruation, but defendants refused to provide them to her, and plaintiff bled through her pants.

85. Plaintiff was extremely uncomfortable and was crying from discomfort, embarrassment, and emotional distress.

86. On June 26, 2017 after plaintiff was detained by defendants for two days, plaintiff was transported back to the Richmond County Criminal Court, was arraigned on June 26, 2017 at approximately 7:25 pm, and she was wrongfully charged with committing serious felony crimes plaintiff did not commit and for which the police officers lacked probable cause to accuse her of committing.

87. Defendants falsely charged plaintiff with committing several crimes, including but not limited to, Criminal Possession of a Weapon, Menacing, and Possession of Ammunition.

88. Importantly, at no time did any of the witnesses report to defendants that plaintiff threatened anyone at the scene of the dispute, or that plaintiff possessed a weapon.

89. . Second, the police officers allege that they recovered a gun and ammunition from EF's bedroom located in the basement of their home.

90. Although defendants lacked probable cause to accuse plaintiff of possessing the gun and/or the ammunition, they falsely arrested plaintiff and EF because defendants wanted to use the arrest and prosecution of plaintiff to pressure EF to enter a guilty plea in exchange for dismissing the charges brought against plaintiff.

91. At no time relevant herein did defendants e recover a firearm from plaintiff or from her possession, custody or control and they lacked probable cause to arrest her or charge her with committing that crime.

92. Due to the severity of the criminal charges brought against plaintiff, at arraignment bail was set at \$15,000, plaintiff could not immediately post bail and was remanded to the Rose M. Singer Center on Riker's Island whereat she was detained for an additional 4 days before she was able to post bail and was released from custody.

93. In order to post bail plaintiff had to pay a bail bondsman \$2900 to post bail for her.

94. Additionally, plaintiff paid \$3500 to retain a criminal defense attorney represent her in the underlying criminal case.

95. Plaintiff was fired from her job at Hilton Hotels because of the arrest and criminal prosecution pending against her and lost a total of approximately \$45,885.18 in income while she was unemployed.

96. Plaintiff was required to make 2 additional appearances in Richmond County Criminal Court to address the criminal charges pending against her and endure a 7-month criminal prosecution before all criminal charges were dismissed and sealed in their entirety on January 17, 2018.

97. Plaintiff could no longer live in her home after she was released from Riker's Island, had to move out of her home immediately after she was released from Riker's Island and she incurred costs greater than \$10,000 moving to a new residence.

98. The false arrest and malicious prosecution caused plaintiff to experience severe psychological/ emotional trauma that required medical treatment to address the emotional and psychological trauma she experienced.

99. Plaintiff was diagnosed with insomnia and severe anxiety.

100. Plaintiff gained approximately 50 pounds due to the increased stress levels and anxiety she experienced throughout the pendency of the criminal prosecution.

101. At no time relevant herein did the defendants have an objective factual basis to believe plaintiff committed a crime and they lacked probable cause to arrest plaintiff.

102. The defendant officers provided the Kings County District Attorney's Office with false, misleading and incomplete information about the facts and evidence that purportedly gave them probable cause to arrest and prosecute plaintiff.

103. Based upon the false information provided to the District Attorney's Office by the defendant police officers, a criminal prosecution was maliciously initiated against plaintiff without probable cause.

104. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of a fair trial and are liable to plaintiff for their failure to intervene.

105. The unlawful search of plaintiff's home, search of plaintiff, false arrest, false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

106. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. The individually named police officer defendants while acting in concert and within the scope of their authority, caused the unlawful search of plaintiff's home and caused plaintiff to be unlawfully searched, unlawfully seized, falsely arrested/ imprisoned, maliciously prosecuted, denied the right to due process/ right to a fair trial, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

Unlawful Search

109. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

111. Defendants lacked probable cause to search plaintiff.

112. Defendants also lacked probable cause to search plaintiff's home.

113. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment

116. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

118. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

121. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 120 with the same force and effect as if more fully set forth at length herein.

122. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

123. Defendants commenced and continued a criminal proceeding against plaintiff.

124. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which she was prosecuted.

125. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

126. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Right to Due Process/ Fair Trial

129. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 128 with the same force and effect as if fully set forth herein.

130. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

131. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Richmond County District Attorney's Office.

132. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Richmond County District Attorney's Office.

133. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

134. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

137. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 136 with the same force and effect as if more fully set forth at length herein.

138. The defendants that did not physically touch plaintiff but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein.

140. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

141. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

142. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

143. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

144. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

145. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Sheila Martin demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 12, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 12, 2019

/s/
DAVID M. HAZAN